

Ram Prakash Gupta v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 15 February 2023 · Writ - C No. 4046 of 2023 · **Theft recovery withdrawn; writ disposed without deciding the demand.**

HEADNOTE

Writ against a theft-of-electricity demand notice disposed after the licensee withdrew the recovery and the Court left the respondents at liberty to pass a fresh order strictly under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Prakash Gupta challenged, before the Allahabad High Court, a demand notice dated 28 December 2022 issued by respondent no. 4 for theft of electricity. The petition was listed on 6 February 2023 with a direction that the Electricity Department's counsel be notified. On 15 February 2023 counsel for the Department stated that the impugned recovery had been withdrawn and that the respondents would pass a fresh order after following the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.2

Theft recovery withdrawn; fresh order under the Code

HOLDING

On the Electricity Department's statement that the impugned theft recovery had been withdrawn and that a fresh order would follow the Electricity Supply Code, 2005, the writ challenging the 28.12.2022 demand notice was disposed of with liberty to the respondents to pass that fresh order strictly in accordance with the procedure prescribed by the Code. ¶ 2

PRINCIPLE TAGS

withdrawal-of-recovery-fresh-order-under-code

The Department withdrew the 28.12.2022 theft recovery, and the writ was disposed with liberty to pass a fresh order strictly in accordance with the Electricity Supply Code, 2005, without any finding on the demand. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE WITHDRAWN THEFT DEMAND AND OF ANY FRESH ORDER

The Court recorded the withdrawal and did not examine the theft allegation, the 28.12.2022 notice, or which steps of the Code the fresh order must meet. ¶ 2